BEFORE THE CENTRAL INFORMATION COMMISSION, NEW DELHI
SECOND APPEAL UNDER SECTION 19(3) OF THE RIGHT TO INFORMATION ACT, 2005

Appellant	Neeraj Singh Mohnia, A1-204, Prasad Nagar Society, Wadgaon Sheri, Pune – 411014 (address on the RTI record: A-503, Marathon Eminence, Dadasaheb Gaikwad Marg, Mulund West, Mumbai – 400080). Mobile: 9323722122. Email: adarshimpexent@gmail.com
Respondent 1	The CPIO, Office of the Registrar of Companies, Gujarat, Dadra & Nagar Haveli, ROC Bhavan, Opp. Rupal Park, Near Ankur Char Rasta, Naranpura, Ahmedabad – 380013
Respondent 2	Shri Keerthi Thej N., Registrar of Companies & First Appellate Authority, ROC Ahmedabad, at the same address
RTI application	ROCAD/R/E/26/00029 dated 21.05.2026
CPIO reply	No. ROC/RTI/ROCAD/R/E/26/00029/2026-2027/1287 dated 18.06.2026
First Appeal	ROCAD/A/E/26/00016, filed 23.06.2026
Impugned order	No. ROCAD/A/E/26/00016/2026-27 dated 22.07.2026 (portal action date 23.07.2026)
Subject company	M/s Shri Maintainance Contract Private Limited, CIN U99999GJ1992PTC017724 (struck off)
Limitation	90 days from 22.07.2026 expire on 20.10.2026. The appeal is filed within time.
Connected matter	Second Appeal against the FAA order in ROCAD/A/E/26/00018 (RTI ROCAD/R/E/26/00032), concerning the same company

PRELIMINARY FACTS

1. The Appellant filed RTI Application No. ROCAD/R/E/26/00029 on 21.05.2026 before the CPIO, ROC Ahmedabad, seeking records and particulars (Items A to I) concerning the striking off of M/s Shri Maintainance Contract Private Limited (CIN U99999GJ1992PTC017724) and its present status.

2. By reply dated 18.06.2026 the CPIO stated, for Items A, F and H, that "no details regarding the Strike Off are readily available" with the office. For Item G the CPIO stated that the company's status is "Strike-Off" and that no revival application under Section 252 of the Companies Act, 2013 is pending. For Items B, C, D, E and I the CPIO referred the Appellant to the public documents and certified-copy facility on the MCA website, citing Section 399 of the Companies Act, 2013.

3. The Appellant filed a First Appeal on 23.06.2026 (ROCAD/A/E/26/00016). By the impugned order dated 22.07.2026 the First Appellate Authority held that the CPIO had "rightly communicated about the available information as on date" and disposed of the appeal without interference.

4. The Appellant does not challenge the reply on Item G. This appeal is confined to Items A, F and H and to Items B, C, D, E and I.

GROUNDS OF APPEAL

GROUND A "NOT READILY AVAILABLE" IS NOT A GROUND UNDER THE ACT (ITEMS A, F AND H)

5. The Act asks whether information is held by or under the control of the public authority (Section 2(j)). Under Section 7(1) the CPIO must either provide it or reject the request on a ground in Section 8 or 9. The phrase "readily available" appears nowhere in the Act. The reply does not say that the records do not exist, or that they were searched for and not found, or that an exemption applies.

6. Striking off under Section 248 of the Companies Act, 2013 is done by the Registrar himself. It involves a notice under Section 248(1) and publication in the Official Gazette under Section 248(5), so this office necessarily created records of those steps. The Appellant has located on the MCA website public notices issued by this office for the company, namely Form STK-5 (ROC/STK/5A/ dated 08.05.2017, Serial No. 3046) and Form STK-7 (Serial No. 8989). It is unexplained how the office that issued and published these notices holds "no details" of its own strike-off action.

7. Section 4(1)(a) of the Act requires a public authority to maintain its records duly catalogued and indexed. Difficulty in tracing a record is not a reason to refuse. If a diligent search fails, the CPIO must say so in terms and state the search made.

GROUND B SECTION 399 OF THE COMPANIES ACT, 2013 DOES NOT EXCLUDE THE RTI ACT (ITEMS B, C, D, E AND I)

8. Section 399 gives a person the facility to inspect documents kept with the Registrar and to obtain copies on payment of fees. It is an additional facility. Nothing in it bars an application under the RTI Act or creates an exemption under Section 8 or 9. Section 22 of the RTI Act gives it overriding effect over inconsistent provisions of other laws.

9. The Ministry's opinion cited in the reply is an executive view. It cannot add an exemption that Parliament has not enacted, and the exemptions in Section 8 are exhaustive.

10. To the extent Items B to E and I seek records generated by the Registrar's own office in the course of the strike-off, such as notices, file notings and correspondence, those are not documents "filed by companies" and Section 399 does not reach them.

11. Even where a document is in the public domain, the CPIO must identify it and say where it can be obtained. The reply gives only a generic pointer to the MCA portal and does not identify a single document responsive to any of these Items.

GROUND C THE IMPUGNED ORDER IS NOT A REASONED ORDER

12. The First Appellate Authority held that the CPIO had "rightly communicated about the available information as on date". The order does not ask whether "readily available" is a legal test, whether any search was made, or whether Section 399 can displace Section 22 of the RTI Act, and it does not deal with the Items one by one. An appellate authority under the Act acts in a quasi-judicial capacity and must give reasons for upholding a denial.

GROUND D ONUS AND CONTEXT

13. Under Section 19(5) the onus of proving that a denial was justified lies on the CPIO. Neither the CPIO nor the First Appellate Authority has discharged it.

14. The information is sought in connection with pending recovery proceedings before the Debts Recovery Tribunal-II, Mumbai (O.A. No. 122 of 2022), in which the status and records of this struck-off company are relevant.

PRAYER

The Appellant respectfully prays that this Hon'ble Commission may be pleased to:

(a) Set aside the order of the First Appellate Authority dated 22.07.2026 and the CPIO's reply dated 18.06.2026, to the extent challenged;

(b) Direct the CPIO to reply point-wise on Items A, F and H, stating for each whether the record is held and, if it is not held, the search made, and to furnish copies of all responsive records held by the office;

(c) Direct the CPIO to furnish, for Items B, C, D, E and I, copies of the records held, or in the alternative to identify each responsive document and the place from which it can be obtained and supply certified copies of any record not available on the portal;

(d) Direct that this appeal be heard together with the Appellant's Second Appeal arising from ROCAD/A/E/26/00018, which concerns the same company; and

(e) Pass such further orders as this Hon'ble Commission may deem fit in the interest of justice.

DECLARATION AND VERIFICATION

I, Neeraj Singh Mohnia, the Appellant, declare that the matter raised in this appeal has not been decided by this Commission and is not pending before any other court or authority, and verify that its contents are true and correct to the best of my knowledge and belief.

Place: Pune

Date: **17th October 2026**

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Neeraj Singh Mohnia

Appellant (In Person)

INDEX OF ENCLOSURES (self-attested copies)

Annexure	Document
A-1	RTI Application No. ROCAD/R/E/26/00029 dated 21.05.2026
A-2	CPIO's reply No. ROC/RTI/ROCAD/R/E/26/00029/2026-2027/1287 dated 18.06.2026 (2 pages)
A-3	First Appeal No. ROCAD/A/E/26/00016 dated 23.06.2026

A-4	Impugned order No. ROCAD/A/E/26/00016/2026-27 dated 22.07.2026
A-5	MCA public notice, Form STK-5 (ROC/STK/5A/ dated 08.05.2017), Serial No. 3046
A-6	MCA public notice, Form STK-7, Serial No. 8989